

Shantanu Ashima Gaur vs Space Technology And Education Pvt Ltd on 2 April, 2025

IN THE COURT OF MS. ALKA SINGH,
COMMERCIAL CIVIL JUDGE, WEST DISTRICT, TIS HAZARI COURTS,
DELHI.

DLWT030024192021

CS No. 1110/2021

MR. SHANTANU ASHIMA GAUR
S/o Ms. Ashima Gaur,
R/o B-54, F.R.I.
Campus, New Forest,
DehraDun, Pin-248006 (Uttarakhand)

..... Pla

Versus

1. M/S SPACE TECHNOLOGY & EDUCATION PVT. LTD.
Through its C.M.D.
Mr. Sachin Bahmba,
WZ-19, Asalatpur,
A-3 Block, Janakpuri,
New Delhi-110058.
(Mobile No. 98-1847-7797
Telephone No. 91-11-25532193).
2. MR. SACHIN BAHMBA, (C.M.D.),
For and on behalf of :
M/s Space Technology & Education Pvt. Ltd.
House no. 42-E, Block-DB,
LIG Flats, Hari Nagar, West Delhi,
New Delhi.
Pin Code-110064.
(Cell Phone No. 919818477797).

....Defend

CS No. 1110/2021 Shantanu Ashima Gaur Vs. M/s Space Technology and Education P. Ltd.
Date of Filing : 20.09.2021
Date of Judgment : 02.04.2025

JUDGMENT

1. Present suit has been filed by the plaintiff for recovery of Rs. 1,58,000/- (Rupees One Lakh Fifty Eight Thousand Only) against the defendants. Briefly stated the facts of the case are as under:-

2. That the plaintiff there has been a relation of employer and employee between the defendant and the plaintiff. That the defendant, by means of an appointment letter dated 11.07.2018, appointed the plaintiff for the post of trainee-Education Department, on 09.07.2018, at a remuneration of Rs.10,000/- per month as stipend for the first two months. That vide the said letter, after having completed his training of two months, the plaintiff, under the terms of employment, was stipulated to be on a probation period of six months with a salary of Rs. 21,050/- per month. That in view of the plaintiff's outstanding performance, the plaintiff was promoted to be a permanent employee, one month earlier than the completion of stipulated time, w.e.f. 01.02.2019 at a salary of Rs. 25,000/- per month. That the said promotion and due acknowledgment of his performance was effectuated through a confirmation letter dated 04.03.2019. That the defendant kept on paying the plaintiff's due salary to the plaintiff, till February 2020 @ Rs. 25,000/- per month, through bank account, although the plaintiff was promoted by the defendant, to Sr. Educator, Education Department, w.e.f. January 2020 and was promised to be remunerated at a monthly salary of Rs. 30,000/-. That the acknowledgment of the said promotion has been made by the defendant in the plaintiff's relieving letter dated 05.10.2020. That as per the bank statement of the plaintiff, the plaintiff was paid Rs. 5,000/- to Rs. 13,306/- w.e.f. April 2020 till 31.08.2020 and the plaintiff was intimated that the said amount was paid by the defendant to the plaintiff towards his salary for the month of May 2020. The plaintiff vide first notice dated 19.02.2021, through email, requested the defendant to disburse the remaining salary of Rs. 1,39,000/- but the defendant paid no heed. Thereafter on 21.03.2021 a legal notice was sent to the defendant but the defendant did not make the payment of outstanding amount to the plaintiff. It is also claimed that vide the above notice dated 21.03.2021, the defendant was apprised of the total outstanding amount of Rs. 2,40,000/- and thereafter an amount of Rs. 1,00,806/- was paid to him by the defendant in bits and barts and thereafter a sum of Rs. 1,39,194/- remained to be paid and after much deliberations and conversations and exchanges through emails it was agreed that the said amount of Rs. 1,39,194/- shall be paid in two parts i.e. the first installment would be of Rs. 61,194/- and the other installment would be of Rs. 75,000/-. Accordingly, the plaintiff received Rs. 20,000/- on 01.05.2021, Rs. 20,000/- on 26.05.2021 and Rs. 21,161/- on 09.05.2021 and he was asked to acknowledge the same as the complete payment of first installment as abovestated which the plaintiff declined owing to the previous conduct of the defendant and suspecting malafide and also because the same was not the complete amount of the first installment. Thereafter on 09.07.2021, the plaintiff again followed up with the defendant regarding the status of the payment and it was replied that plaintiff has received his salary as per the applicable rates and the defendant also referred to a notice as per which the salary was to be paid @ 50% of the original figure which as per the plaintiff did not apply on him because he was not an employee of the defendant when the said notice was made and because he was legally entitled to receive the entire amount for his diligent work round the clock. Thereafter on 31.08.2020, the plaintiff was forced to leave the job and it is claimed that the defendant owes a sum of Rs. 75,000/- to the plaintiff and is also liable to pay a sum of Rs. 83,000/- as cost of the notice, advocate's fee and the expenses of filing the suit and other future expenses.

3. Lastly, it is prayed that a decree for the recovery of Rs. 1,58,000/- (Rupees One Lakh Fifty Eight Thousand Only) be passed in favour of the Plaintiff and against the Defendants.

4. Record reveals that the present suit was converted into an ordinary suit on 02.04.2022. Thereafter, summons were directed to be issued to the defendants and defendant no. 1 was served on 09.05.2022 and defendant no. 2 on 04.05.2022. That the memo of appearance was sent by the defendants through mail on 13.09.2022 and hard copy of the same was filed on 17.09.2022. However, despite opportunity given, neither the defendant nos. 1 & 2 appeared nor any W.S. was filed on their behalf and vide order dated 13.09.2022, the right of the defendants to file W.S. was closed and accordingly, they were proceeded ex-parte and the plaintiff was given liberty to lead ex-parte Plaintiff Evidence. Accordingly, the plaintiff examined himself as PW-1 by way of affidavit Ex. PW-1/A. In such evidence, he reiterated and reaffirmed the stand taken in original plaint. Further, he placed on record various documents i.e. copy of offer letter dated 11.07.2018 Mark A, Confirmation letter as Ex PW1/2, Copy of relieving letter as Mark B, System generated copy of HDFC bank salary account as Ex PW1/4 (colly), System generated true and exact copy of email dated 19.02.2021 as Ex PW1/5, True and exact copy of notice dated 21.03.2021 as Ex PW1/6 (colly), True and exact copy of email dated 21.03.2021 as Ex PW1/7 and original postal receipts are Ex PW1/8 & Ex PW1/9, System generated true and exact copy of email dated 09.04.2021 as Ex PW1/10, System generated true and exact copy of email dated 09.04.2021 is Ex PW1/11, System generated true and exact copy of email dated 16.04.2021 is Ex PW1/12, System generated copy of HDFC bank salary account is Ex PW1/13 (colly) (running into 8 pages), Certificate under Section 65 B of Indian Evidence Act in support of HDFC Bank statement as Ex PW1/14, True and exact copy of the email dated 19.02.2021 as Ex PW1/15, True and exact copy of reply by defendant to email dated 05.03.2021 as Ex PW1/16, True and exact copy of email dated 21.03.2021 as Ex PW1/17, True and exact copy of email dated 09.04.2021 as Ex PW1/18, True and exact copy of reply by defendant to email dated 09.04.2021 as Ex PW1/19, True and exact copy of trailing email sent by the defendant accounts team to the deponent email dated 16.04.2021 as Ex PW1/20, Certificates under Section 65-B of Indian Evidence Act in support of documents Ex PW1/15 to Ex PW1/20 as Ex PW1/21, True and exact transcript of the conversation dated 20.04.2021 as Ex PW1/22, True and exact transcript of the conversation dated 02.12.2021 as Ex PW1/23, True and exact transcript of the conversation dated 05.12.2021 as Ex PW1/24 (colly), Certificates under Section 65-B of Indian Evidence Act in support of documents Ex PW1/22 to Ex PW1/24 as Ex PW1/25.

5. I have heard the arguments and gone through the entire record meticulously.

6. Record reveals that vide order dated 13.09.2022, the right of the defendants no. 1 & 2 to file W.S. was closed and accordingly, they were proceeded ex-parte. As a result of which, the averments made by the plaintiff and evidence led by plaintiff remained unrebutted and unchallenged. This Court has no reason to disbelieve the averments of plaint in such a situation. As such, as per the unrebutted evidence of PW-1 and documents on record, it is proved that the plaintiff has been able to prove his case against the defendants no. 1 & 2 and the defendant no. 1 & 2 are jointly and severally liable to pay the amount of Rs. 1,58,000/- (Rupees One Lakh Fifty Eight Thousand Only) to the plaintiff. Furthermore, present case has been filed within the period of limitation and this Court has the jurisdiction to deal with present suit.

RELIEF:-

7. In the light of the above discussions and findings, the present suit is decreed in favour of the plaintiff and against the defendant nos. 1 & 2 for a sum of Rs. 1,58,000/- (Rupees One Lakh Fifty Eight Thousand Only). The plaintiff however, has not asked for any interest on the principle amount but has prayed for any other relief as may be deemed fit by the Court. Accordingly, in my view, ends of justice would be met, if interest at the rate of 9% per annum on the amount of Rs. 75,000/- only, from the date of filing of the suit till realisation of the suit amount is decreed in favour of the plaintiff and against the defendants and no interest is payable on the amount of Rs. 83,000/- so calculated by the plaintiff as cost of notice, advocate's fees, suit and future expenses of contesting the suit. Further, plaintiff is also entitled to the cost of the same. Decree sheet shall be prepared accordingly.

8. File be consigned to Record Room after due compliance.

Pronounced in open Court, on this Day of 2nd April, 2025
This judgment consists of 6 signed pages. ALKA

SINGH 2025.

(ALKA SINGH)
Commercial Civil Judge
West District, THC, Delhi